

10	23CV422621	MICHAEL HERTZ vs MARK A. OLIVEREZ et al	Before the Court is the parties' joint request to appoint an appraiser. The Court has studied the parties' proposed appraisers and appoints Stephen W. Gettel, MAI, of Gettel & Associates as the appraiser to appraise the real property that is the subject of the partition action in this case. The Court will prepare a formal order.
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Line 3

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

R. T., an individual,

Plaintiff,

v.

COUNTY OF SANTA CLARA, and DOES
through 25, inclusive,

Defendants.

Case No. 19CV358022

**[Tentative] ORDER GRANTING
DEFENDANTS' MOTION FOR
SUMMARY ADJUDICATION**

Before the Court is Defendant, County of Santa Clara's motion for summary judgement, or in alternative, summary adjudication. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling.

I. Alleged Facts

According to the FAC, beginning in or about 1973, the County placed Plaintiff R.T. in foster care for approximately five years. (FAC, ¶ 21.) He was placed in the custody, care, and control of foster mom, Petra Rodriguez. Petra was approved, licensed, trained, supervised, and/or compensated by the County. (FAC, ¶22.) During his placement, Plaintiff was repeatedly sexually assaulted and abused by Petra. (FAC, ¶ 23.) Petra had care, custody, and control of multiple minors in addition to Plaintiff, including two of his siblings. (FAC, ¶ 24.) Petra sexually abused those other children, as she did Plaintiff, which was reported to the County, who placed the other children with Petra. Plaintiff's biological mother reported that Plaintiff was being sexually abused by Petra, but